CONSTITUTIONAL LAW NOTES

Based on Lectures of 3, 4, and 5 August 2026

Rule of Law: Concept, Components, and Historical Evolution

Including:

Dicey's Three Components • Magna Carta • ADM Jabalpur Case
Ancient Indian Heritage • World Justice Project Framework

Compiled: August 2026

Contents

1 Meaning and Definition **5**
1.1 Origins of the Phrase . . . 5
1.2 Historical Evolution in England . . . 5
1.3 Dicey's Book Structure . . . 5
1.4 How to Answer Questions on Rule of Law . . . 6

2 Historical Background **7**

3 Causes of the Revolution **7**

4 Key Outcomes **7**

5 Constitutional Documents **7**

6 Significance **8**

7 Overview **9**

8 SUPREMACY OF LAW **9**
8.1 Definition . . . 9
8.2 Key Elements . . . 9
8.3 Example: Anwar Ali Sarkar Case . . . 10
8.4 Classroom Illustration . . . 10

9 EQUALITY BEFORE LAW **10**
9.1 Definition . . . 10
9.2 Key Elements . . . 10
9.3 Dicey's Specific Ideas . . . 11
9.4 Indian Constitution: Article 14 . . . 11
9.5 Important Distinction . . . 11

10 PREDOMINANCE OF LEGAL SPIRIT **12**
10.1 Definition . . . 12
10.2 Key Elements . . . 12
10.3 The Habeas Corpus Act . . . 12
10.4 Example in USA . . . 12
10.5 Classroom Explanation . . . 13
10.6 Famous Legal Maxim . . . 13
10.7 The State Came Later . . . 13

11 Summary Table: Dicey's Three Components **14**

12 Critical Distinction **15**

13 Rule by Law Examples **15**

14 Key Insight **15**

15 John Austin and The Province of Jurisprudence Determined **16**

16 Introduction **17**

17 Ancient Indian Examples **17**
17.1 Natural Justice in the Ramayana 17
17.2 The Mahabharata Example 17
17.3 Shravan Kumar Example 18

18 Natural Justice as Part of Rule of Law **18**
18.1 Why These Examples Are Ignored 18

19 The Colonial Narrative **19**

20 Analysis of the Term "Snake Charmer" **19**

21 The Anglo-Indian Community and Article 331 **19**
21.1 Historical Fact 19
21.2 Article 331 19
21.3 Criticism of Congress Party 19

22 Mark Tully Example **20**

23 Examination Directive **20**

24 Introduction **21**

25 Historical Background **21**

26 The Barons' Revolt **21**

27 Important Points About Magna Carta **21**

28 Introduction **23**

29 Critique of WJP Methodology **23**
29.1 India's Unique Challenges 23

30 WJP's Main Components **23**

31 Benefits of Effective Rule of Law **24**

32 Conceptual Framework **24**
32.1 Constraints on Government Powers 24
32.2 Absence of Corruption 24
32.3 Open Government 24
32.4 Fundamental Rights 25
32.5 Order and Security 25
32.6 Regulatory Enforcement 25

33 Civil Justice Parameters **25**

34 Criminal Justice Parameters **26**

35 Practical Application **26**

36 Case Details **27**

37 Historical Context **27**

38 The Supreme Court Bench **27**

39 The Judgment **27**

40 Nani Palkhivala's Argument **28**

41 The Court's Response **28**

42 The Overruling **28**
42.1 Two Articles That Cannot Be Suspended 29

43 The Emotional Correction: D.Y. Chandrachud **29**
43.1 The Privacy Case Passage 29

44 The Parable of the Naughty Father and the Good Son **30**

45 The Visit of Justice Sanjiv Khanna **30**
45.1 Practical Lesson 31

46 Case Details **32**

47 The Issue **32**

48 The Supreme Court Holding **32**

49 Important Note **32**

50 Introduction **33**

51 Products and Traditions Discussed **33**
51.1 Traditional Attire 33
51.2 Sanskrit Language 33
51.3 Traditional Medicine 33
51.4 Indian Foods 33

52 Pilgrimage and Tourism **34**

53 Critique of Government Policy **34**
53.1 The Student's Argument 34

54 Important Clarification **34**

55 The Student's Thoughtful Point **34**

56 The Scholarship Issue: Merit-cum-Means **36**
56.1 The Problem . . . 36
56.2 The Professor's Argument . . . 36
56.3 The Resolution . . . 36
56.4 New Rules . . . 36

57 The CLAT Coaching Story (2012) **37**

58 Personal Background **37**

59 Attendance Policy **38**
59.1 The Honesty Principle . . . 38
59.2 The Message . . . 38
59.3 Empathy in Enforcement . . . 38

60 The Importance of Attending and Listening in Class **39**
60.1 The NLU System . . . 39
60.2 Powerful Example . . . 39
60.3 Substantiation . . . 39

61 The IPS Lecture Anecdote **40**

62 The Decolonization Directive **40**
62.1 The Broader Message . . . 40

63 The Contrast: Rule by Law vs Rule of Law **41**

64 How Rule of Law Operates **41**
64.1 The 100-Mark Exam Example . . . 41
64.2 The Gold Medalist Story . . . 41

65 Rights Under Rule of Law **42**

66 Modern Application **42**

67 Important Cases **43**

68 Constitutional Amendments **43**

69 Key Constitutional Articles **43**

70 The Essence of Rule of Law **44**
70.1 Final Thoughts . . . 44

71 Key Takeaways **44**

72 Last Words from the Professor **44**

INTRODUCTION TO RULE OF LAW

1 Meaning and Definition

Definition

Rule of Law means that no man is above law and every person is subject to the jurisdiction of ordinary courts of law, irrespective of position and rank.

1.1 Origins of the Phrase

- The phrase originates from the French phrase **"La Principe de Legalite"** which implies the principle of legality.
- **Black's Law Dictionary** defines it as governance according to law.
- **Oxford Advanced Learner's Dictionary** provides a similar definition.

1.2 Historical Evolution in England

The Rule of Law was systematically articulated by Professor **Albert Venn Dicey** in his seminal work ***An Introduction to the Study of the Law of the Constitution*** (1885).

Important

Key Points about Dicey's Work:

- Dicey did not create the Rule of Law; he observed and documented the prevailing circumstances in England.
- The powers of the monarchy had been curtailed after the Glorious Revolution of 1688-89.
- Governance was increasingly in the hands of the House of Commons—the common people.
- The Rule of Law is fundamentally about ensuring that everything runs by law, without any person's whims and fancies governing society.

1.3 Dicey's Book Structure

Dicey's work was divided into **three parts**:

1. **The Sovereignty of Parliament** - Dicey initially took this to be fundamental, total and beyond challenge.
2. **The Rule of Law**
3. **Constitutional Conventions**

Important

Note: When Irish home rule returned to Parliament's agenda some three decades later, Dicey changed his mind about parliamentary omnipotence. In the final edition (1915), he lamented that parliamentary sovereignty had fallen prey to the party system.

1.4 How to Answer Questions on Rule of Law

Ideal Answer Structure:

1. **Meaning** - General definition
2. **Dictionary Definition** - Black's Law Dictionary, Oxford
3. **Jurist's View** - Historical perspective from jurists

Quote

Sir Edward Coke, Chief Justice in James I's reign, was the originator of the doctrine in England. However, Greek philosophers like **Aristotle**, **Plato**, and **Cicero** first wrote about it. Aristotle notably said that *"law should govern and those who are in power should be servants of law."*

THE GLORIOUS REVOLUTION OF 1688-89

2 Historical Background

The **Glorious Revolution of 1688-89** was a watershed moment in British constitutional history.

- Began on **5 November 1688** when **William of Orange**, backed by a 21,000-strong army, invaded England.
- Uprising in the north followed.
- By the end of 1688, **James II** had fled to France.
- Louis XIV offered the king-in-exile his protection.

3 Causes of the Revolution

- Deep-seated fear of **Catholicism**
- Belief that Catholics were actively plotting the overthrow of church and state
- This conspiracy theory was given credibility by genuine Catholic subterfuge, most notably the **Gunpowder Plot of 1605**
- James II wished to secure not only freedom of worship for Catholics, but also removal of the **Test and Corporation Acts** so they could occupy public office

4 Key Outcomes

- A Convention Parliament decided James had effectively **abdicated**
- William and his wife Mary were declared **joint monarchs**
- A minor Dutch prince became King of England

5 Constitutional Documents

1. **Bill of Rights (1689)** - Determined that the monarch must be Protestant
2. **Act of Settlement (1701)** - Demanded that whoever inherited the Crown must *"joyn in communion with the Church of England as by law established"*

6 Significance

- Established the **supremacy of Parliament** over the British monarchy
- The events of 1688 constituted a foreign invasion of England by the Dutch Republic
- Bloodshed in England was limited, but secured in Ireland and Scotland by force with much loss of life
- Fostered growth of slavery by ending Royal African Company's monopoly on trade in 1698

DICEY'S THREE COMPONENTS

7 Overview

Dicey's formulation of the Rule of Law incorporates **three distinct though kindred ideas**:

Component	Meaning	Key Points
1. Supremacy of Law	No man shall be punished except for violation of law established in ordinary court	No arbitrary power; no discretion; ordinary court
2. Equality before Law	No man is above the law; everyone subject to ordinary laws	No special privilege; personal liability; ordinary courts
3. Predominance of Legal Spirit	General principles of Constitution are judge-made; rights secured by courts	Natural order; customs; judge-made rights

8 SUPREMACY OF LAW

8.1 Definition

Definition

"No man shall be punished or made to suffer in body or goods except for the violation of the law, and such violation must be established in an ordinary court of the land and in an ordinary legal manner."

8.2 Key Elements

1. **No punishment without law** - Only violation of law can lead to punishment
2. **Ordinary court** - Punishment must be through ordinary legal manner
3. **No arbitrary power** - Government cannot punish by its own fiat
4. **No wide discretionary powers** - Persons in authority do not enjoy wide, arbitrary or discretionary powers
5. **Wherever there is discretion, there is room for arbitrariness**

8.3 Example: Anwar Ali Sarkar Case

Case Law

Anwar Ali Sarkar Case

- State Government had unguided discretion to decide which cases would be sent for speedy trial.
- No rational basis existed.
- One Collector might send a rape case for speedy trial because it received good publicity.
- Another Collector might ignore a similar case.
- Such individual discretion violates the Supremacy of Law.
- The law itself should specify what kind of cases will be sent for speedy trial.

8.4 Classroom Illustration

Example

The professor uses a classroom example:

> "If a student expresses an opinion he disagrees with, he cannot throw her out of class simply because he didn't like what she said. That would be acting on individual whims and fancies. The law gives everyone the liberty to hold independent opinions based on their own choice, conviction and thinking. If someone is to be punished, it must be in accordance with the law, not personal preference."

9 EQUALITY BEFORE LAW

9.1 Definition

Definition

"No man is above the law and everyone, whatever his condition or rank, is subject to the ordinary laws of the land. Every person can sue or be sued in a court of law."

9.2 Key Elements

1. **No special privilege** - Officials as such enjoy no special protection
2. **Personal liability** - If an official abuses power, he is personally liable

3. **Ordinary courts** - Disputes between government and citizen settled in ordinary courts according to ordinary law

4. **No special governmental courts** - No special courts for government officials

9.3 Dicey's Specific Ideas

1. Officials enjoy no special protection; if an official abuses his power, he is personally liable as if he were a private citizen.

2. Disputes between government and citizen are settled in ordinary courts according to ordinary law, not in special governmental courts.

9.4 Indian Constitution: Article 14

Quote

"The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."

Important

Note: The principle of Equality before Law is distinct from Equal Protection of Laws.

- Equality before Law was borrowed from British tradition.
- Equal Protection of Laws was borrowed from the American constitutional tradition.

9.5 Important Distinction

- **Equality before Law** - Negative aspect: No special privilege will be created
- **Equal Protection of Laws** - Positive aspect: No discriminatory and depressive status will be created

What it prohibits:

- No untouchability
- No restrictions based on caste
- No prohibition on wearing clothes on upper body
- No denial of access to ponds

10 PREDOMINANCE OF LEGAL SPIRIT

10.1 Definition

Definition

"The general principles of the British Constitution and especially the liberties of the individual are judge-made—the result of judicial decisions determining the rights of private persons in particular cases brought before the courts from time to time."

10.2 Key Elements

1. **Constitution is judge-made** - Rights of individuals form part of and pervade the Constitution
2. **Rights are secured by courts** - Rights are part of Constitution because secured by courts
3. **Constitutional Law is consequence** - Not the source, but consequence of rights as defined by courts
4. **No arbitrary powers** - No arbitrary or wide discretionary powers
5. **Ordinary courts supreme** - Ordinary courts and ordinary law should be supreme

10.3 The Habeas Corpus Act

Dicey said it was:

Quote

"Worth a hundred Constitutional articles guaranteeing individual liberty."

10.4 Example in USA

Dicey accepted Rule of Law in the U.S.A. because:

- Rights declared in the Constitution could be enforced
- Constitution gave legal security to the rights declared

10.5 Classroom Explanation

Example

The professor asks students to think about the 100 people they have known since childhood.

- How many would they have enmity with?
- How many would they have neutral relations with?

Estimate: 80-20 ratio (but professor suggests closer to 90-95 neutral, 5-10 hostile)
Key Insight: With most people, we do not fight. Our relations remain fine. We do not violate their rights, nor do they violate ours. Even without a teacher or State present, peace prevails because **human beings are usually peaceful**.
"This is the essence of the Predominance of Legal Spirit: even before the State or formal law existed, people lived in an orderly and non-volatile manner."

10.6 Famous Legal Maxim

Quote

"Your right ends where my nose begins."

- May have originated in France
- Later used by Abraham Lincoln and others
- The idea is: you can practice punching all you want, but it should not hit someone else's nose
- As long as there is distance, people do not interfere

Important

Key Insight: This theory governed society even when there was no sovereign, no state, no king, no Prime Minister.

> "It is a natural, self-regulating order."

10.7 The State Came Later

The professor explains:

- The State might have made a few laws
- But as human society evolved, some laws kept forming along with us
- When the State came into existence, there were already existing laws
- At the very least, the **right to life**, **right to food**, **right to marry**, and **right to procreation** were certainly already there

- These rights were not given by any king or any State
- Generally, people respected each other and took care of each other
- Such practices which became customs were, in essence, laws
- The State came later to make it even better

11 Summary Table: Dicey's Three Components

Component	**Meaning**	**Key Points**
Supremacy of Law	No punishment except for violation of law	No arbitrary power; no discretion; ordinary court
Equality before Law	No one above the law	No special privilege; personal liability; ordinary courts
Predominance of Legal Spirit	Judge-made constitution	Rights secured by courts; natural order; customs

RULE OF LAW vs RULE BY LAW

12 Critical Distinction

Aspect	Rule by Law	Rule of Law
Meaning	Work happens according to whatever law exists	Law itself must be just, fair, and reasonable
Quality	No concern for justice or quality	Law must have inherent quality
Example	Dictator's orders; oppressive laws	Laws respecting fundamental rights and human dignity

13 Rule by Law Examples

Example

1. **North Korea Example:** When the father of the "missile man" died, the new ruler ordered all subjects to weep and have tears in their eyes. Anyone without tears would be killed. This is Rule by Law—it is not illegal because the sovereign ordered it, but it has no fairness, no justice, and is not reasonable.

2. **Taliban Example:** Girls cannot study under existing laws. These laws provide order and rules, but they lack the essential qualities of justice, fairness, and reasonableness.

3. **Women's Rights Example:** In some interpretations, Indian girls from Muslim households are given fewer rights, told not to get educated, married off early, and made to wear a burqa.

14 Key Insight

Important

Rule of Law demands not merely the existence of law, but the existence of **good law** that respects human rights and promotes justice.

15 John Austin and The Province of Jurisprudence Determined

Definition

John Austin (1790-1859) - First professor of jurisprudence at the University of London.

"The Province of Jurisprudence Determined" was derived from his course lectures and first appeared separately from the Lectures in 1832.

Important

Interesting Story: After Austin passed away, his wife found some of his notes on his desk. She was also educated and recognized the value of these notes—the lecture materials Austin had prepared for his courses. She approached a publisher, and the book was published posthumously. Had there not been his wife's intervention, Austin's work might not have achieved the recognition it did.

- Austin is regarded as the **Father of Analytical Jurisprudence**
- Jeremy Bentham was senior to him

RULE OF LAW IN ANCIENT INDIA

16 Introduction

Quote

The professor makes a critical argument that the Rule of Law is a concept that is very difficult to explain but very easy to understand. While books and articles typically trace it only to Western countries, the professor asserts emphatically that **the Rule of Law has always been there in our country**.

17 Ancient Indian Examples

17.1 Natural Justice in the Ramayana

Case Law

Lord Rama and Ravana

- Lord Rama sent messages to Ravana not once but **twice**, warning him to return Mother Sita and avoid a destructive war.
- Even during the war, he gave repeated warnings.
- He told Ravana that he was a great and knowledgeable saint and only needed to return Sita to be excused.

17.2 The Mahabharata Example

Case Law

Yudhishthira's Exile

- When Yudhishthira lost the game of gambling, the condition was 12 years of exile and 1 year in an unknown place.
- Lord Krishna, who knew a war would take place, did not stop it.
- He insisted that the **rule be followed**.

17.3 Shravan Kumar Example

Case Law

The Devoted Son

- Shravan Kumar was the devoted son who was carrying his blind parents.
- Lord Dasharatha accidentally killed him.
- The Rule of Law demanded that the king take responsibility for the care and protection of the dead boy's parents.
- King Dasharatha went to them, served them water.
- They ultimately cursed him to die of the same grief of losing a son.

Important

Key Insight: Dasharatha was a king; he could have avoided this, but the Rule of Law bound him. This is the true spirit of the ancient Indian Rule of Law.

18 Natural Justice as Part of Rule of Law

The professor explains that natural justice can be considered a part of the Rule of Law.

Students should read:

- Any story from ancient India—they will find it is the Rule of Law
- These hundreds and thousands of ancient Indian examples are ignored today

18.1 Why These Examples Are Ignored

Important

The reason was the **British need to show dominance**. If the British had acknowledged that Indians had good things of their own, then the Indian people would not have accepted their superiority.

BRITISH COLONIAL ERASURE OF INDIAN LEGAL HERITAGE

19 The Colonial Narrative

Quote

"To maintain control, the British had to push a narrative that Indians were inferior, calling them things like snake charmers."

20 Analysis of the Term "Snake Charmer"

- The professor expresses strong dislike for the term
- The word "charm" actually means something good, like a charming friend
- The real satisfaction comes from the Hindi word **"sapera"**
- Question: "Did the British come all the way to India just to see snakes?"
- "If they liked India so much, why didn't they want to go back even after independence?"

21 The Anglo-Indian Community and Article 331

21.1 Historical Fact

Important

The British eventually folded their hands in front of people like Dr. Ambedkar and pleaded. Their plea was that now with democracy, the public would elect representatives to Parliament, but the British had fallen in love with India and were not going back.

21.2 Article 331

- Since they would not win elections, they asked for representation without elections
- This led to **Article 331**
- Dr. Ambedkar granted the Anglo-Indian community **two MPs** in Parliament for a period of **10 years**

21.3 Criticism of Congress Party

- The Congress Party repeatedly extended this provision
- Finally removed by the **104th Constitutional Amendment**

Quote

"If India was not good, no one would have wanted to settle here. From the Mughals to the British, everyone who came stayed."

22 Mark Tully Example

- Mark Tully, a BBC reporter
- Came to report and liked India so much that he stayed
- The professor recommends him as an excellent writer

23 Examination Directive

Important

Important for Examination:

1. If asked about the Rule of Law, write a little bit about India
2. If a student writes that the Rule of Law has come from Western countries, **three marks will be deducted automatically**
3. Search for and find references to the Rule of Law in ancient Indian literature
4. Even new Indian literature is still older than Western sources

MAGNA CARTA (1215)

24 Introduction

The professor traces the Rule of Law in England to **1215** with the **Magna Carta**.

Definition

Magna Carta was one of the first official documents about human rights. It was the first written promise by a King not to do certain things.

25 Historical Background

In older times:

- Kings would levy taxes on the public for personal whims
- To fight wars for a princess
- To build grand monuments for a deceased wife
- Simply to display power
- The common people's blood was sucked through arbitrary taxation
- There was no curb on the king's power

26 The Barons' Revolt

Important

The **Barons of England**—not the common man, but middle-class people—confronted the king and threatened to revolt if their demands were not met.

- The king was compelled to accept
- Agreed not to tax them without consultation
- Led to the principle of **"no taxation without consultation"**
- First time a king acknowledged that some people had some rights

27 Important Points About Magna Carta

1. **Magna Carta was not for the common man initially**
2. It was signed **not once, but on several occasions**
3. Whenever a new king came to power, the charter was signed afresh

4. The first version may have had only **15 items**
5. Later versions expanded to **39 items**
6. The word **"due process"** was used for the first time in Magna Carta
7. Likely in Article 39 of a later version

WORLD JUSTICE PROJECT (WJP) FRAMEWORK

28 Introduction

The World Justice Project (WJP) has attempted to define the Rule of Law in a new way and annually audits countries on their Rule of Law ranking.

Important

India's Ranking: Currently ranked around 76th, which the professor feels is lower than deserved.

29 Critique of WJP Methodology

The professor expresses some disagreement with their methodology:

- Scandinavian countries like Norway have smaller, more homogeneous populations and sufficient money
- Problems are fewer
- India, with its immense diversity, faces unique challenges

29.1 India's Unique Challenges

Example

"Many arrangements for anger":

- Give reservation → General gets angry
- Don't give reservation → The rest get angry
- Give permission for Tazia → Idol immersers get angry
- Give permission for idol immersion → Tazia processors get angry

30 WJP's Main Components

1. **Accountability**
2. **Open Government**
3. **Just Law**
4. **Accessible and Impartial Justice**

31 Benefits of Effective Rule of Law

Where Rule of Law is stronger:

- **Economy is stronger** - hard work is rewarded and looting is less
- **More peaceful countries**
- **People are more educated**
- **People live longer**

Example

Bihar Example: Bihar became poor because Jungle Raj replaced Rule of Law—no one wants to set up a factory if they have to pay bribes or risk kidnapping.

32 Conceptual Framework

32.1 Constraints on Government Powers

Limited by:

- Legislature
- Judiciary
- Independent audit
- Non-governmental checks

32.2 Absence of Corruption

In:

- Executive
- Judicial
- Legislative branches

32.3 Open Government

Includes:

- Published laws
- Right to Information
- Civic participation
- Complaint mechanisms

Important

Note: In India, no matter how good a law Modi makes, Rahul Gandhi will never support it, and vice versa. Party interests are prioritized over national interest, which weakens this component.

32.4 Fundamental Rights

Includes:

- Equal treatment
- Right to life
- Due process
- Freedom of opinion, belief, privacy, assembly
- Labor rights

32.5 Order and Security

- Crime control
- Limited civil conflict
- No resort to violence for personal grievances

32.6 Regulatory Enforcement

Features:

- Effective enforcement without improper influence
- No unreasonable delay
- Due process in administrative proceedings
- No expropriation without lawful process and compensation

33 Civil Justice Parameters

- Access and affordability
- Freedom from discrimination
- Freedom from corruption
- Freedom from improper government influence
- No unreasonable delay
- Effective enforcement
- Accessible ADR mechanisms

34 Criminal Justice Parameters

- Effective investigation
- Timely adjudication
- Effective correctional system
- Impartiality
- Freedom from corruption
- Freedom from improper government influence
- Due process rights of the accused

Example

The professor humorously references an incident where a former Home Minister was beaten up, suggesting that such things affect the criminal justice parameter.

35 Practical Application

Important

Rule of Law can be applied anywhere, in practical terms. Students can measure Rule of Law in their own university by looking at components like:

- Whether classes start on time
- Whether syllabus and reading material are provided
- Whether teachers come on time

ADM JABALPUR CASE (EMERGENCY)

36 Case Details

Case Law

ADM Jabalpur vs. Shivkant Shukla

37 Historical Context

- During the **Emergency**
- **MISA** (Maintenance of Internal Security Act) was applied
- Everyone was arrested under it
- **Fundamental Rights were suspended**
- A writ petition was filed by ADM Jabalpur stating they were wrongly detained and should be released

38 The Supreme Court Bench

The Supreme Court at the time had very good judges. At least three were beyond doubt:

1. **Justice Khanna** - a very upright judge
2. **Justice Bhagwati** - called himself the pioneer of human rights
3. **Justice Chandrachud (Y.V. Chandrachud)** - a very good judge
4. **Justice Beg** - the professor harshly calls Indira Gandhi's "peon"
5. **Chief Justice A.N. Ray** - made Chief Justice by Indira Gandhi but later changed his allegiance

Important

It seemed the decision would be 4-1 in favor of liberty. However, the shocking judgment came. The professor states bluntly that **Indira Gandhi bought everyone**. The only man who was not sold was **Justice H.R. Khanna**.

39 The Judgment

The judges held that:

> "The entire repository of the right to liberty is the Constitution. If the Constitution has not given the right, then you do not have the right at all. Since the Constitution and rights were suspended, there was no Right to Life left to protect."

40 Nani Palkhivala's Argument

The legendary lawyer **Nani Palkhivala**, who was the respondent in the case, posed a terrifying hypothetical scenario:

Example

"Suppose a girl committed a crime, and the police went to arrest a specific person, say 'Ishita.' But the police mistakenly catch another innocent girl, 'Aarya.' Aarya protests that she is not Ishita, but the police say, 'To hell with it, you are in our hands now."

An even darker question:

"During an Emergency, if a policeman, due to personal enmity or after drinking, comes and simply shoots an innocent person without any crime, would there be any remedy?"

41 The Court's Response

Justice Chandrachud's devastating response:

Quote

"I am sorry, but the present law does not allow any relief."

Meaning: A station house officer could come, shoot you, and you would have absolutely no legal recourse.

Important

The core of the judgment was that all rights come only from the Constitution, and if the Constitution is suspended, you have no rights at all.

42 The Overruling

- Because it was a manifestly wrong decision, immediately after the **Morarji Desai government** came to power
- The **44th Constitutional Amendment** was passed
- It was declared that the Right to Life can never be suspended, even during an Emergency

42.1 Two Articles That Cannot Be Suspended

Important

Article 20 and Article 21 cannot be suspended, even during an Emergency.

> "This is explicitly written in Article 359, which now states 'except 20 and 21.'"

Note: Thus, ADM Jabalpur was overruled by the 44th Amendment.

43 The Emotional Correction: D.Y. Chandrachud

Important

Justice D.Y. Chandrachud (DYC), the son of Justice Y.V. Chandrachud, felt a deep sense of guilt over his father's betrayal.

43.1 The Privacy Case Passage

In the landmark Privacy case, he wrote a powerful passage:

Quote

"Neither life nor liberty are bounties conferred by the State, nor does the Constitution create these rights."

The professor explains:

- Our life and liberty are not a bounty (a gift) of the State or the Constitution
- They are given by Nature or God
- The Constitution has merely accepted this fact
- The Constitution is not the sole repository of these rights; they existed even before its advent
- This was the exact opposite of what his father had written

44 The Parable of the Naughty Father and the Good Son

Example

The Parable:

1. There was a very naughty father who abused everyone in the village his whole life
2. On his deathbed, he told his very decent son that everyone would abuse him after he died
3. He asked the son to do something to make people praise him
4. The son realized that if he did even dirtier work than his father, people would say the father was better
5. While the father used to abuse, the son started throwing mud and dung at people
6. After a few days, the villagers started saying, "His father was better!"

Application: D.Y. Chandrachud did something similar. To make his father look better, he wrote this profound passage, even though it was not legally necessary because the 44th Amendment had already fixed the problem. He explicitly wrote that **ADM Jabalpur is overruled**, effectively washing away his father's sin.

45 The Visit of Justice Sanjiv Khanna

- Justice Sanjiv Khanna (nephew of Justice H.R. Khanna) visited the university for convocation
- Students were eager to get photos with him because of the heroic legacy of Justice H.R. Khanna
- The professor told Justice Khanna he had a huge fan following among the students
- Justice Khanna was surprised, thinking that as Chief Justice for only 5-6 months, not many students would know him
- The professor explained that because of ADM Jabalpur, the injustice done to his uncle (Justice H.R. Khanna was not made Chief Justice for his courageous dissent), Justice Sanjiv Khanna had converted that injustice into justice by rising to the position of Chief Justice

45.1 Practical Lesson

Important

Reading cases has real-life benefits.

1. A PhD scholar on her honeymoon in Kashmir recognized Justice Sanjay Kishan Kaul at her hotel
2. She called the professor for advice on what to say
3. He advised her to quickly read 2-3 of his judgments and then tell him how much she appreciated his explanation of proportionality in the Privacy judgment
4. She did so, and it led to a meaningful conversation
5. When Justice S.K. Krishna visited, the professor was able to have an engaging discussion with him by recollecting his judgments and commission reports

Quote

"The moral of these stories is that when students read cases and judgments, they have something substantial to talk about with eminent people. Otherwise, they will just come, eat food, leave, and not have a good life."

SUBRA MANIAN SWAMY vs MANMOHAN SINGH CASE

46 Case Details

Case Law

Dr. Subramanian Swamy vs. Dr. Manmohan Singh

47 The Issue

- A government servant can be prosecuted for corruption only after obtaining **permission from the government**
- If a minister in Manmohan Singh's government was corrupt, permission to prosecute was needed from **Manmohan Singh himself**
- Naturally, such permission was not granted

48 The Supreme Court Holding

Important

The Supreme Court held that **not giving sanction for prosecution of a corrupt official is a violation of the Rule of Law**.

Quote

The professor makes it clear that he is criticizing based on this judicial pronouncement, not personal whims.

49 Important Note

Important

Reading this case is compulsory. Anyone who does not read it will fail the mid-term (though the professor later admits he has never actually framed a question on this case for his students).

INDIAN HERITAGE, EXPORTS & TRADITIONAL KNOWLEDGE

50 Introduction

The professor discusses the neglect of Indian products and traditions after independence.

Important

Main Argument: If sarees had been exported to the world, India could have become economically stronger much earlier. However, due to Jawaharlal Nehru's love for the West and disregard for Indian traditions, such opportunities were lost.

51 Products and Traditions Discussed

51.1 Traditional Attire

- Kurta-pajama
- Khadi
- Indian jacket (popularized by Modi—now 90% of people wear it)

51.2 Sanskrit Language

- The professor calls Sanskrit the most scientific language in the world
- Research on Sanskrit is happening at NASA
- Yet Nehru stopped the teaching of Sanskrit in India
- He insisted that English was essential for progress

51.3 Traditional Medicine

- **Ayurveda** - an ancient medical system
- **Neem**, **Tulsi**, and more are being patented by America
- India has used these for thousands of years
- If India had patented them, the economic gains would have been enormous

51.4 Indian Foods

- **Millets** and Indian generic foods have become globally popular
- The professor questions: Why did the government not recognize this importance earlier?

52 Pilgrimage and Tourism

- **Ayodhya** - place of immense faith, crossroads of faith, had always stayed as land and existed as testimony
- **Chitrakoot** - major pilgrimage and tourist site
- Tourism in ancient India was connected with religion
- Pilgrimage sites were developed as local economy centers

53 Critique of Government Policy

Quote

"70 years have passed since independence, and the neglect continued throughout."

53.1 The Student's Argument

A student argues that government priorities were different—they had to focus on institutions like **ISRO, DRDO, and IITs**, and then focus on traditional knowledge.

Important

The Professor's Counter: "Tell me one institute opened to promote Ayurvedic medicine."

- When a student mentions AIIMS, he dismisses it as having only a neglected Ayurveda department
- No dedicated government institute for Ayurveda was established

54 Important Clarification

The professor clarifies:

Quote

"I am not against Western medicine or clothing—people can wear pants and suits—but Indian products should have been marketed too."

55 The Student's Thoughtful Point

Important

A student makes a thoughtful point: "Those in power can only act based on what they know. Nehru and Gandhi were educated abroad and absorbed Western thought. They naturally told the country what they themselves knew."

Quote

The professor acknowledges this argument but chooses not to engage further in the debate at that moment, humorously declaring that the student has won for now because he needs to move forward with the syllabus. He invites the class to have a separate, dedicated debate on this topic another day.

PERSONAL ANECDOTES AND PRACTICAL WISDOM

56 The Scholarship Issue: Merit-cum-Means

56.1 The Problem

- The scholarship is called **Merit-cum-Means**
- The Vice Chancellor had been interpreting it for seven years as "Merit separate, Means separate"
- Giving scholarships under two different heads

56.2 The Professor's Argument

When the professor became Chairman of the committee:

Quote

"Merit-cum-Means means 'Merit in Means.' Just as a 'Drawing-cum-Dining room' does not mean the dining room and drawing room are separate."

56.3 The Resolution

1. The professor scolded the committee members
2. After a world-class research effort, took the matter to the Executive Council
3. A judge ruled in his favor

56.4 New Rules

Important

New Eligibility Criteria:

- Only students whose family income is up to **8 lakh rupees** (the government's means criteria) are eligible
- Within that group, the toppers receive the scholarship
- Those with family income of **1 crore rupees** are not eligible at all

Quote

"This is Rule of Law in action—and that is why people get angry with me. But if one keeps reading and building capability, one will always find work elsewhere."

57 The CLAT Coaching Story (2012)

Example

The Story:

1. A gentleman approached the professor looking for a teacher
2. He initially refused
3. When the man persisted, the professor demanded **3000 rupees per lecture** (equivalent to 15000 today)
4. The man asked him to first teach a demo class because the students were "very naughty" and had chased away three teachers
5. The professor replied: "Throw your approval in the dustbin. I don't have time to give a test. If you bring lousy teachers, kids will do this only."
6. He refused to negotiate and insisted on payment for all 30 classes upfront
7. He even joked that the director should not instigate the kids to chase him away after 28 classes to avoid paying
8. His confidence came from knowing his subject thoroughly
9. He eventually taught there successfully

Quote

"In India, there is no lack of employment; there is a lack of capable people."

58 Personal Background

- The professor belongs to the General category with no reservation
- Has changed many government jobs, always thriving because of competence
- Chose to stay in Nagpur because Delhi's pollution gave him respiratory problems and black spots on his heart
- Doctors told him it looked like he smoked 20 cigarettes a day, though he has never even seen a cigarette up close
- Nagpur, especially the Mihan area, offers a peaceful life with morning and evening walks

CLASSROOM INTERACTION AND ATTENDANCE

59 Attendance Policy

59.1 The Honesty Principle

Important

The professor emphasizes that he is not as stupid as students think—he remembers faces and names even when students lie.

Example:

- When one student claims her attendance is fine
- The professor reveals it is actually **15 percent**
- Meaning she has attended only 15 out of 35 classes

59.2 The Message

Quote

"Lying and saying 'I do come' will not help the situation improve. Instead, accept the truth so the problem can be addressed."

59.3 Empathy in Enforcement

- The professor asks about attendance only for the student's betterment
- He even helps students who are at risk of being debarred
- A full year back is a serious consequence
- He is not as cruel as students think
- If someone genuinely cannot wake up in the morning, he jokingly offers to arrange for a bucket of water to be poured over them

Important

The Underlying Message: The rules exist and cannot be bypassed, but there is also room for empathy if students are honest about their difficulties.

60 The Importance of Attending and Listening in Class

60.1 The NLU System

Important

The professor does not teach by simply reading from a book. The NLU system is such that whatever the professor teaches is what he expects in the examination.

60.2 Powerful Example

Example

The Quasi-Federal Issue:

1. The professor has taught that the Constitution of India is **not quasi-federal**
2. If a student reads any book or article, they will find the term "quasi-federal" written there
3. The moment a student writes "quasi-federal" in an exam, they will receive a **zero and fail**
4. He will not even entertain a discussion if a student brings a book to argue otherwise
5. The correct position was already taught in class

60.3 Substantiation

- Dr. Ambedkar first said the Constitution is federal
- The Supreme Court repeatedly said it is federal
- Later the Supreme Court declared that federation is the basic structure of this Constitution

Quote

"Anyone writing quasi-federal is merely acting as a follower of a Western country. I am not Western. I am Indian."

61 The IPS Lecture Anecdote

Example

The Story:

1. The professor was teaching IPS officers
2. He was criticizing corruption, stating that if the SSP is not corrupt, a traffic inspector does not have the courage to take money at a crossroad
3. The topic of his lecture was the Prevention of Corruption Act
4. A huge complaint was made against him
5. Accused of taunting and abusing the officers who had invited him by paying his airfare

62 The Decolonization Directive

Important

The Professor's Request:

1. If students are ever asked about the Rule of Law, they should write a little bit about India
2. He states candidly: "No matter how hard the 'cockroach' tries, he thinks Modi will remain in power for another three years, and only Modi sympathizers will evaluate their answer sheets."
3. However, he clarifies that regardless of who is in power, he will be the one evaluating their papers
4. If a student writes that the Rule of Law has come from Western countries, **three marks will be deducted automatically**

Quote

"Search for and find references to the Rule of Law in ancient Indian literature. Even new Indian literature is still older than Western sources."

62.1 The Broader Message

The professor's directive is to **decolonize their legal thinking** and ground their answers in Indian history and context.

RULE OF LAW IN A UNIVERSITY CONTEXT

63 The Contrast: Rule by Law vs Rule of Law

Important

The professor admits that for a long time, **Rule by Law** was going on in their university under a certain unnamed person.

64 How Rule of Law Operates

64.1 The 100-Mark Exam Example

Example

Example:

- In a system governed by the Rule of Law, the law remains and governs everything uniformly
- No matter how much a professor might personally dislike a student, if the attendance system gives them 5 marks, that cannot be changed to 4
- It is calculated automatically
- Mid-term marks, project marks, and end-term marks are all fixed

64.2 The Gold Medalist Story

Example

The Girl from Indore:

- She is "crazy for gold medals"
- Already secured 12 gold medals and is trying for 3 more
- The professor confesses she was not his most liked student
- There were other students who were dearer to him and whom he wanted to get good marks
- However, she put her life into studying, worked hard, and wrote the exam correctly
- He could not deduct her marks

Quote

"This is the Rule of Law: his whims and fancies cannot override her merit."

65 Rights Under Rule of Law

Important

Student Rights:

- If students have attendance, no one can debar them
- If they have given an exam, getting their result is their right
- If they passed, being promoted is their right

66 Modern Application

Quote

"The scope of the Rule of Law has become very wide."

Examples:

- If you don't get water, it is a violation
- If you don't get food on time, it is a violation

KEY CASE LAWS AND CONSTITUTIONAL AMENDMENTS

67 Important Cases

Case	Year	Significance
ADM Jabalpur vs. Shivkant Shukla	Emergency Period	Rights suspended; later overruled
Subramanian Swamy vs. Manmohan Singh	-	Prosecution sanction violation
Kesavananda Bharati vs. State of Kerala	1973	Basic structure doctrine
E.P. Royappa vs. State of Tamil Nadu	1974	Arbitrariness is antithesis of equality
Anwar Ali Sarkar Case	-	Unguided discretion violation

68 Constitutional Amendments

Amendment	Year	Significance
44th Constitutional Amendment	-	Declared Right to Life can never be suspended; Art. 20 and 21 cannot be suspended
104th Constitutional Amendment	-	Removed Anglo-Indian representation in Parliament

69 Key Constitutional Articles

Article	Significance
Article 14	Equality before law and equal protection of laws
Article 20	Protection in respect of conviction for offences (cannot be suspended)
Article 21	Protection of life and personal liberty (cannot be suspended)
Article 331	Representation of Anglo-Indian community in Parliament
Article 359	Suspension of rights during Emergency (except 20 and 21)

CONCLUSION

70 The Essence of Rule of Law

Quote

The Rule of Law is useful as a counter to the possibility of arbitrariness in State action.

70.1 Final Thoughts

- The basic emphasis of Rule of Law is on **exclusion of arbitrariness**
- Lawlessness and unreasonableness on the part of the government are the antithesis of the Rule of Law
- In **Kesavananda Bharati v. State of Kerala**, the Supreme Court enunciated the rule of law as one of the most important aspects of the doctrine of basic structure
- The rule of law in one form or another is a **criterion of civilization**

71 Key Takeaways

Important

Final Important Points:

1. The Rule of Law has always existed in India in some form
2. Dicey's three principles form the foundation of modern Rule of Law doctrine
3. ADM Jabalpur case demonstrates the danger of suspending rights
4. The 44th Amendment corrected this injustice
5. Ancient Indian traditions and heritage must be recognized in legal education
6. Rule of Law is practical and can be measured and applied anywhere
7. Capability and competence are essential for success in life

72 Last Words from the Professor

Quote

"The rule of law in one form or another is a criterion of civilization. If one keeps reading and building capability, one will always find work elsewhere."